

Serious Fraud Investigation Office Vs Adarsh Build Estate Ltd. & 186 others

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Present: Sh. Hari Kishan, Senior Prosecutor for SFIO along with
Sh. Lokender Singh Raghav, Standing Government Counsel for
the complainant -SFIO and Sh.Abhinav Deshwal, Legal
Consultants

Accused Nos. **1** to **70** companies represented through accused
No.114 Rahul Virendra Modi who is in custody

Accused Nos. **71** to **78** companies, represented through
accused Sidharth Chauhan (No. **135**) (not present)

Accused No.**79** company, represented through accused
Vivek Hari Vyasi (No. **115**) who is on interim bail.

Accused Nos. **80** company, represented through accused
Naveen Kumar (No. **139**).

Accused Nos. **81** and **82** companies, represented through
accused Surender Singh (No. 140) who is on interim bail
from Hon'ble Supreme Court

None for accused No.83 company

Accused Nos. **84** company, represented through accused
Abhya K. Shah(No.**127**) on bail (sought exemption today),
represented by Sh.Nitin Desodia, Advocate

Accused Nos. **85** company, represented through accused
Jainam Rathod (No.130) on bail from Hon'ble Supreme
Court, (sought exemption today)

Accused Nos. **86**, **87** and **88** companies, represented
through accused Ravi Tak (No. **166**) (sought exemption
today)

Accused No. **89** company, represented through accused
Raj Kumar Bohra (No. 171) (on permanent exemption)

Accused Nos. **90** to **93** companies, represented through
accused Vivek Hari Vyasi (No.**115**) who is on interim bail

Accused Nos. **94** to **97** companies, represented through
Shri Rahul, AR, in person

Accused Nos. **98** company, represented through Shri
Naresh Kumar, AR, in person

Accused Nos. **99** and **100** companies, represented through
accused Raj Kumar Modi (No. **176**) who is on interim bail
from Hon'ble Supreme Court

Accused No.**101** Alba Ploymers Ltd. Represented through
Sh Abhishek AR.

Accused No. **102** company, represented through Shri
Deepak, AR, in person

Accused No. **103** company, represented through Shri
Dharmender, AR, in person

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Accused No. **104** company, represented through Shri Vicky,
AR , in person
Accused No. **105** company represented through Shri Anoop,
AR , in person
Accused No. **106** company represented through Shri Kashi
Nath Jha, AR , in person
None for accused No. **107** company,
Accused No. **108** company, represented through Shri Jishan,
AR,
Accused No. **109** company, represented through Shri Vikas
Paul, AR, in person
Accused Nos. **110** company, represented through AR Raju
Yadav (sought exemption today)
Accused No. **111** company, represented through Shri Ritik
Sharma, AR, in person
None for accused No. **112** company,

Accused Vivek Harivyasi (No. **115**) on interim bail,
represented by Sh Vivek Tanwar, Advocate

Accused No.**116** Nitin Rathore, on bail, in person

Accused No.**117** Priyanka Modi (sought exemption today)
represented by Sh Manl Mittra, Advocate

Accused No. **113**/Mukesh Modi, in custody (not produced
before Court).

Accused No.**114** Rahul Virendra Modi in custody, produced
through VC by the concerned jail authority.

Accused No.**143**/Sudhir Punia in custody, produced through
VC by the concerned jail authority.

Accused No.**177**/Rajiv Kumar Rana in custody, produced
through VC by the concerned jail authority.

Accused No. **120**/Vibhav Lodha is on bail in this case but
custody in other case (not produced before the Court)

Accused No.**134**/Vivek Purohit, who is on bail in this case
but custody in other case.

Accused No. **123**/Rohit Modi, No. **125**/Rajeshwar Singh,
No.**126**/Bharat Modi, No. **131**/Ishwar Singh Sindal, No.
142/Bharat Das Vaishnav, who are on bail in this case but

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custody in other case, produced before the Court through VC by concerned jail authority.

Accused Surender Singh (No. **140**), Vijay Shukla (No. **149**), Raj Kumar Modi (No. **176**), on interim bail.

Accused Joydeep Das Gupta (No.**144**), Lovekush Sharma (**No.145**), Avanish Kumar Tyagi (**No.148**) and Poonam Madan(**No. 151**) on bail, but granted personal exemption(s) till further orders vide order dated 22.11.2019, represented through Shri Vishal Gupta, Advocate.

Accused Leena Harivvysi (**No. 146**) **on bail**, exempted till further orders vide order dated 03.05.2024

Accused Bharat Kumar Mardia (**No. 154**) **on bail**, exempted permanently, represented by Sh. Peeyush Jain, Advocate.

Accused Praveen Maheshwari (No.**156**) and Rajeev Maheshwari (**No.157**) on bail, but exempted from personal appearance till further order(s) vide order 31.01.2020, represented through Shri Piyush Jain, Advocate

Accused Rajeev Verma (No.167), Sushil Maloo (No.168) and Rajendra Singh Bhandari (No.169) on bail, but granted permanent exemption vide order(s) dated 04.09.2019.

Accused Paramvir Singh Sangwan(**No.174**) on bail, but granted personal exemption till further order vide order dated 19.02.2021, represented by Shri Dinesh Kumar, Advocate.

Accused Ichchhita Dungarwal (No.180) and Neha Kataria (No.181) permanently exempted till further orders vod 22.11.2019, represented by Sh Nitin Desodya, Advocate

Accused Paras Bolia (No.121) on bail (sought exemption **today**), represented by Sh Nitin Saini, Advocate

Accused Jainam Rathod (No.130) on bail represented by Sh J.H.Khan, Advocate

Accused Prakash Chandra Purohit(No.133) on bail (sought exemption **today**),represented by Shri Vivek Tanwar, Advocate

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Accused Akshat Singh (No. **136**), on bail in person represented by Shri Prashant Yadav, Advocate

Accused Nazima Khan (No. 152) on bail(sought exemption **today**), represented by Shri Arun Sharma, Advocate

Accused Shiv Raj Sharma (No.160) (sought exemption **today**), represented by Shri Apoorv Yadav, Advocate

Accused Aditya Sarda (No. **141**) on bail in person, represented by Shri Karan Kumar Gogna, Advocate

Accused Naveen Choudhary(No. 162), accused Megha Chauhan No.(No. 163) (sought exemption **today**), accused Indu Tak (No. 164) (sought exemption **today**), accused Ravi Tak (No. 166) (sought exemption **today**), accused Sudhir Mehta(No170 sought exemption today) and accused Saurabh Tak (No. 172), accused Mahesh Kumar Tak (No. 187) (sought exemption today), on bail, (sought exemption today), represented by Sh Neeraj Dev Gaur, Advocate.

Accused Abhay K. Shah (No. **127**) on bail represented by Sh Karamveer, Advocate

Accused Manish Chaudhary(No.128), on bail, represented by Sh Vivek Tanwar, Advocate

Accused Gurbir Singh Sandhu(No.138) (sought exemption today) represented by Sh Sandeep Yadav, Advocate

Accused Jinender Vyas(No.118), accused Deepak Shrimali(No.129), accused Naveen Kumar (No.139), accused Vimal Sanwermal Sharma(No.147), accused Shabir Khan (No. 153), accused Shyam Bihari Gupta (No.165), accused Mahesh Dutt Sharma(No.178), on bail, in person.

Accused No.173 Peeyush Aggarwal on bail, represented by Sh Prashant Yadav, Advocate

Accused Vinay Kumpawat (No. **119**) already declared proclaimed person vod **27.07.2022** and accused Shinder Pal Singh (No. **137**) already declared proclaimed person vod 03.05.2024

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Proceedings qua accused Mahendra Kumar Tak (155) and Vijay Jindal (175) stood abated vide order dated 25.03.2022.

Proceedings qua accused No.122 Virender Modi stood abated vide order dated 13.11.2024

No report from Superintendent, Central Jail, Jodhpur (Rajasthan) has been received, pursuant to directions issued on the last date of hearing. Accused No.113 Mukesh Modi who is in custody in this case and was confined in Jodhpur jail (Rajasthan) had not been produced on the last date of hearing and Naib Court of this Court had informed that concerned jail authority apprised that said accused had been released on interim bail till 01.03.2025, however Ld. Senior Prosecutor for the SFIO informed the Court that this accused had not been granted any interim bail in this instant matter and instead, regular bail application of this accused is stated to be pending adjudication before Hon'ble High Court of Punjab and Haryana. In view of the same, fresh communication be sent to Superintendent, Central Jail, Jodhpur (Rajasthan) to submit the report in this regard, on or before 07.04.2025

2. Accused No. **114**/Rahul Virendra Modi, who is in custody in this case, produced through VC by the concerned jail authority. He be produced through VC before the Court on the adjourned date, if he remains in custody till then.

3. Accused No. **134**/Vivek Purohit, who is on bail in this case, but in custody in other case, produced by concerned jail authority and he be produced before the Court through VC on the adjourned date, if he remains custody in other case.

4. Accused No. **120**/Vibhav Lodha, who is on bail in this case, but in custody in other case, not produced by concerned jail authority. Production warrant of the said accused be issued directing concerned jail authority to produce the accused before the Court through VC on the

adjourned date and in case he comes out on bail in the said case then he is directed to come present in person on the next date.

5. Accused No.143/Sudhir Punia and accused No.177/ Rajiv Kumar Rana in custody, produced through VC from Bhondsi Jail and they be produced through VC on the adjourned date.

6. Accused No. 123/Rohit Modi, No. 125/Rajeshwar Singh, No.126/Bharat Modi, No. 131/Ishwar Singh Sindal, No. 142/Bharat Das Vaishnav, who are on bail in this case, but custody in other case(s), produced before the Court through video conferencing and they be produced before the Court on the adjourned date through video conferencing, if they remain in custody till then.

7. Separate applications seeking exemption from personal appearance(s) filed on behalf of accused No.127 Abhay Kumar Shah, Raju Yadav AR(representing accused No.110/Company), accused No.117 Smt. Priyanka Modi, accused No.121 Parash Bolia, accused No.133 Prakash Chander Purohit, accused No.138 Gurbir Singh, accused No.152 Nazima Khan, accused No.160 Shiv Raj Sharma, accused no. 162 Naveen Chaudhary, accused No.163 Megha Chauhan, accused No.164 Indu Tak, accused No.166 Ravi Tak, accused No.170 Sudhir Mehta, accused No.172 Saurabh Tak and accused No.187 Mahesh Tak. The applications are supported by respective affidavit(s). For the reasons mentioned in the applications, the same stand allowed for today only. All these accused are directed to come present in person on the adjourned date except in emergent situation(s).

8. Arguments on two separate applications, seeking permanent exemption from appearance(s) before the court, moved on behalf of accused no. 117/Priyanka Modi and accused No.133 Prakash Chandra Purohit, not advanced. Arguments on these applications shall be heard on the adjourned date.

9. Today an exemption application has been moved on behalf of accused no.135/Siddharth Chauhan, however Learned Senior

Prosecutor for SFIO/complainant submitted that accused No.135 Siddharth Chauhan preferred anticipatory bail before Hon'ble High Court vide petition bearing No.CRM-M-8166-2025, however the said petition has been dismissed as withdrawn vide order dated 25.02.2025 and further submitted that proclamation proceedings were initiated against said accused during the tenure of learned Predecessor, but in the meanwhile said accused preferred petition before Hon'ble High Court, wherein the Trial Court was directed to adjourn the PO proceedings beyond the date fixed before Hon'ble High Court, but said petition has also been dismissed as withdrawn on 09.01.2025 and that since proclamation was already effected on 30.04.2022 (which was kept in abeyance in view of the directions of Hon'ble High Court) and the accused is having every knowledge of the proceedings and is not deliberately appearing before the Court, so he be declared proclaimed person, in view of the facts obtaining in the matter. Keeping in view the afore-noted undisputed facts, application at hand is misconceived and is liable to be rejected. There is no dispute about the due publication of proclamation against said accused in terms of Section 82 Cr.P.C. on 30.04.2022 and said process was kept in abeyance in view of interim directions passed by Hon'ble High Court in CRM-M-27904-2022, but said petition is stated to have been dismissed as withdrawn on 09.01.2025. Therefore propriety demands that sufficient period of at least 30 days be granted to the accused in compliance of said proclamation and accordingly, accused No.135 Siddharth Chauhan is directed to come present on or before 07.04.2025 before the Court, failing which necessary consequence as per law shall ensue.

10. On the last date of hearing, accused No.124/Neha Ghemawat and accused No.132/Meenakshi Modi, through their counsel, were directed to bring on record order passed by Hon'ble High Court of Rajasthan, if there is any restraint order regarding joining of Court proceedings by these accused, however neither these accused came present today nor any order

has been furnished on record and instead, Shri Manul Mittra, Advocate, learned counsel representing these accused has submitted that joint application of both these accused in terms of Section 88 of Cr.P.C/91 of BNSS was moved and is pending before the Court. As against this, learned Senior Prosecutor for SFIO has submitted that the application is not maintainable, especially when applicants are not coming present before the Court and as such, application deserves to be dismissed on this ground alone. This Court finds force in the submissions made by learned Senior Prosecutor for the SFIO/complainant, simply because once applicants/accused are not coming present before the Court, then application at hand cannot be stated to be maintainable, moreso when applicants-accused are clearly defying repeated directions passed by this Court without any justifiable reasons. Still, as a matter of abundant caution, let fresh summons to both these accused be issued for the adjourned date and it is made clear that in case no further order of Hon'ble High Court of Rajasthan is produced by said accused, then necessary coercive steps shall be initiated against these accused to secure their presence, as Senior Prosecutor for SFIO submitted that presence of all other accused has been secured except three accused persons (including these two accused) and proceedings herein have been stalled on account of the same.

11. Learned counsel representing accused No.160/Shiv Raj Sharma submitted that the said accused is ready to appear before learned Duty Magistrate to get recorded his statement, as per law, so as to facilitate this Court to pass an appropriate order on the pending application moved under Section 306/307 Cr.P.C. Learned Senior Prosecutor submitted that accused No.160/Shiv Raj Sharma has moved an application to become approver. If said accused has moved an application to become approver, then complainant/SFIO is at liberty, if it deems so appropriate, to get statement of said accused recorded before learned Duty Magistrate on any working day by forwarding such application as per law

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and as and when such statement is recorded/put up before this Court, then further order as per law shall be passed on the pending application.

12. Learned Senior Prosecutor is also directed to bring on record amended title, thereby reflecting the names of the persons who have been granted pardon, as prosecution witness, as per the order(s) passed by this Court.

Date of order: 27.02.2025

naveen

Jagdeep Singh
ASJ/Gurugram
UID No.HR0125